

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: img on 05/20/26.
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Perez v. Perez et al.**
Superior Court Case No. 23CECG00025

Hearing Date: May 21, 2026 (Dept. 403)

Motion: By Plaintiff Abel Perez to Compel Further Responses from
Defendants Roberto Perez and Nina Perez

Tentative Ruling:

To continue to June 30, 2026, 3:30 p.m. in **Department 502**. To *sua sponte* strike papers filed by defaulted defendant Roberto Perez, filed May 13, 2026.

**If oral argument is timely requested, it will be entertained on
Thursday, May 28, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Following a successful appeal on an order of demurrer sustained without leave to amend, on April 1, 2025, plaintiff Abel Perez ("Plaintiff") filed a Second Amended Complaint. On December 4, 2025, Plaintiff obtained leave to file a Third Amended Complaint. On December 10, 2025, Plaintiff filed a Third Amended Complaint. On March 16, default was entered against defendant Roberto Perez. On April 27, 2026, Plaintiff filed the instant motions against both of defendants Roberto Perez and Nina Perez. On May 13, 2026, the court improvidently filed papers filed by defendant Roberto Perez. The papers are ordered stricken. Whether defendant Roberto Perez remains defaulted will alter the outcome of the present discovery motions. Defaulted parties concede the allegations of the pleadings, mooted any further need for general discovery. The matter is continued to June 2, 2026, to coincide with the reserved hearing on a motion to set aside default.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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